

SAMPLE SOFTWARE SERVICES AGREEMENT — VERSION B

Fictional document for LexiGuard comparison testing only

1. Parties

This Software Services Agreement (the “Agreement”) is entered into between **Northstar Technologies Pvt. Ltd.**, having its principal office at Pune, Maharashtra (“Client”), and **BluePeak Solutions**, having its principal office at Indore, Madhya Pradesh (“Service Provider”).

2. Effective Date and Duration

This Agreement becomes effective on **1 October 2026** and remains in force for a period of **18 months**, ending on 31 March 2028, unless terminated earlier in accordance with this Agreement.

3. Services

The Service Provider will provide software development, application maintenance, technical support, and automation services described in the applicable project statement of work.

4. Payment Terms

The Client will pay the Service Provider a monthly service fee of **₹90,000**. Invoices will be issued on the first business day of each month and must be paid within **45 calendar days** of receipt. Amounts not disputed in writing within **15 days** of receipt will be treated as accepted.

5. Termination

Either Party may terminate this Agreement for convenience by providing **60 days’ written notice** to the other Party. Either Party may also terminate the Agreement for a material breach if the breach is not cured within **30 days** after written notice.

6. Automatic Renewal

Unless either Party provides written notice of non-renewal at least **60 days before the expiration date**, this Agreement will automatically renew for an additional period of **12 months**.

7. Confidentiality

Each Party agrees to keep confidential all non-public business, technical, financial, customer, and security information received from the other Party. Confidential information may be used only for performing obligations under this Agreement and may not be disclosed to third parties except where required by law or with prior written authorization.

8. Intellectual Property

Deliverables specifically created for the Client under a statement of work will belong to the Client upon full payment of applicable project fees. The Service Provider retains ownership of pre-existing software, tools, libraries, templates, and general technical know-how.

9. Liability

The aggregate liability of either Party arising from this Agreement will not exceed the total fees paid or payable under this Agreement during the **three months** preceding the event giving rise to the claim. This limitation does not apply to fraud, willful misconduct, or unauthorized disclosure of confidential information.

10. Data Protection

The Service Provider will implement reasonable administrative, technical, and organizational safeguards to protect Client data against unauthorized access, alteration, disclosure, or destruction.

11. Dispute Resolution

The Parties will first attempt to resolve disputes through good-faith negotiation. If a dispute cannot be resolved within **45 days**, it will be subject to arbitration in **Indore, Madhya Pradesh** in accordance with applicable Indian arbitration law.

12. Governing Law and Jurisdiction

This Agreement will be governed by the laws of India. Subject to the arbitration provision above, courts located in **Indore, Madhya Pradesh** will have jurisdiction over proceedings arising from this Agreement.

13. Important Obligations

The Client must provide timely access to information and systems reasonably required for the services and must make payments according to the agreed schedule. The Service Provider must perform the services with reasonable skill and care, maintain confidentiality, protect Client data, and provide agreed deliverables according to the applicable statement of work.

14. Entire Agreement

This Agreement and its applicable statements of work constitute the entire agreement between the Parties concerning the services and supersede prior discussions or understandings relating to the same subject matter.

Note: This is a fictional sample created for software testing and demonstration. It is not a real contract and does not constitute legal advice.